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File No.: EXP202311992 (PA/00085/2023)

RESOLUTION OF THE WARNING PROCEDURE

From the actions taken by the Spanish Agency for Data Protection and based on the following:

BACKGROUND

FIRST: On 10/07/23, A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection.

The complaint was directed against B.B.B., with NIF: ***NIF.1 (hereinafter, the respondent), owner of the website ***URL.1, for the alleged violation of data protection regulations: Regulation (EU) 2016/679 of the European Parliament and of the Council, of 27/04/16, regarding the Protection of Natural Persons in relation to the Processing of Personal Data and the Free Movement of such Data (GDPR) and Organic Law 3/2018, of December 5, on Personal Data Protection (LOPDGDD).

The complaint states that the website in question does not have a "legal notice" or information about privacy and data protection. There is also no information regarding the owner of the website.

The complainant also states in their writing that, although no information regarding the owner of the website appears, B.B.B. sent them a contract indicating that he is the manager of the company and his phone number matched the one listed on the website.

The complaint is accompanied by the contract indicated by the complainant, which states in the first paragraph the following:

On one side, ***EMPRESA.1, with the manager of the commercial department B.B.B. ***NIF.1, and address for notification purposes of this contract. On the other side, the client. A.A.A....

It also includes an invoice for the services rendered where the identifying data appearing on it are:

B.B.B. - ***NIF.1 ***ADDRESS.1 ***PHONE.1 ***EMAIL.1

SECOND: On 12/09/23, in accordance with the provisions of Article 65.4 of the LOPDGDD, the complaint was forwarded to the respondent for analysis and to report back within one month on the matters raised in the complaint.

The forwarding was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP). According to a certificate from the entity Envialia, the document sent to the respondent on 12/09/23 was "Returned to Origin due to Absence," on 19/09/23: 1st Delivery Attempt C/ Jorge Juan, 6 www.aepd.es 28001 – Madrid sedeagpd.gob.es

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of delivery on 13/09/23, resulted in "absent." 2nd Delivery Attempt on 14/09/23 resulted in "absent."

On 15/09/23, the forwarding of the complaint and request for information to the respondent was reiterated. According to a certificate from the Electronic Notification and Electronic Address Service, the request document sent to the respondent on 15/09/23, through the electronic notification service "NOTIFIC@", was automatically rejected on 26/09/23.

Although the notification was validly carried out by electronic means, considering the procedure completed in accordance with the provisions of Article 41.5 of the LPACAP, the forwarding of the complaint and request for information to the respondent was reiterated.

According to a certificate from the Electronic Notification and Electronic Address Service, the request document sent to the respondent on 26/09/23, through the electronic notification service "NOTIFIC@", was notified on 10/11/23. No information has been received from the respondent regarding the forwarding made.

THIRD: On 10/10/23, the Director of the Spanish Agency for Data Protection issued an agreement to admit the processing of the complaint filed, in accordance with Article 65 of the LOPDGDD.

FOURTH: On 01/02/23, this Agency accessed the website ***URL.1, detailing the following characteristics regarding data processing and its "Privacy Policy":

- Regarding the possibility of obtaining personal data from users:

a).- It is observed that on the website in question there is a link, at the top left (<>), through which a form ***URL.1 contact/ is displayed where the user can enter personal data such as name, email, or

phone number.

To send the form, it is only necessary to click on <>

On this form page, there is the following information about the owner of the website:

Contact information:

(...)

b).- Personal data of the user can also be entered through the link available at the top right of the main page <>, where the user can enter personal data such as name, email, or phone number.

- Regarding the information available in the "Privacy Policy":

It is noted that there is no information about the "Privacy Policy" on the website (there is no information about the responsible party, nor about the processing).

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of personal data). There is also no link redirecting the user to the "legal notice" or "Privacy Policy."

There is a link, both at the top of the webpage and at the bottom, labeled <>, through which the following information is provided:

“***COMPANY.1 is a company specialized in the manufacture of all types of aluminum and PVC enclosures such as casement windows, tilt-and-turn windows, sliding windows, glass roofs, sandwich panel roofs, glass curtains, etc. ... The most common jobs are those of casement windows, tilt-and-turn windows, and sliding windows. At ***COMPANY.1, all customers are important, both private clients and professional clients, and they are always at their complete disposal. The team consists of all types of qualified personnel (technicians, operators, salespeople, office staff) with extensive experience in their respective positions.”

FIFTH: On 25/04/24, the Director of the Spanish Agency for Data Protection agreed to initiate a warning procedure against the party being claimed in accordance with the provisions of articles 63 and 64 of the LPACAP, for the alleged infringement of article 13 of the GDPR, classified under Article 83.5 of the GDPR.

The attempt to notify the initiation of the file was made by certified mail to the address appearing on the invoice presented ***ADDRESS.1, in accordance with the rules established in the LPACAP.

According to a certificate from the Postal Service, the notification of the initiation of the file was “Returned to Origin due to Excess” on 29/05/24, due to absence from delivery and not collected from the post office.

On 05/06/24, the notification of the initiation agreement was made through an announcement in the Single Edict Board of the Official State Bulletin, in accordance with article 44 of the LPACAP. In this announcement, the party being claimed is informed about the possibility of obtaining a copy of the opening agreement.

SIXTH: Once the aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP and the period granted for the formulation of allegations had elapsed, it has been confirmed that no allegations have been received regarding the initiation of the file in this Agency.

In view of all that has transpired, the Spanish Agency for Data Protection considers in this procedure, **PROVEN FACTS**

First: Along with the complaint letter, the service contract is presented where the parties involved are:

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“On one side, ***COMPANY.1, with the manager of the commercial department B.B.B. ***NIF.1, and address for notification purposes of this contact. On the other side, the client A.A.A. ...

An invoice for the services provided between the parties to the contract is also provided, where the identifying data appearing on it are:

“B.B.B. - ***NIF.1 ***ADDRESS.1 ***PHONE.1, ***EMAIL.1”

Second: It is confirmed that on the website ***URL.1, there is the possibility of obtaining personal data from users through the <> tab, where a new page unfolds with a form to enter personal data. In this form, the following information about the owner of the website is present:

“Contact information: (...)”

Third: It is confirmed that on the website ***URL.1 there is no “Privacy Policy” or “Legal Notice” informing about the identity of the responsible party, nor about the processing of personal data.

LEGAL GROUNDS

I.-

Competence:

In accordance with the powers granted to each supervisory authority by article 58.2 of the GDPR, and as established in articles 47, 48.1, and 64.3 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II.-

Summary of the facts and responsibility for processing

According to the claimant, the website in question does not have a legal notice or information about privacy and data protection. There is also no information regarding the owner of the company.

However, B.B.B. sent them a contract indicating that he was the manager of the company, and his phone number matched the one appearing on the website ***URL.1. Additionally, the invoice he provided for the services rendered contains the following information:

B.B.B. - ***NIF.1

***ADDRESS.1 ***PHONE.1 ***EMAIL.1, therefore, in this case, B.B.B. should be considered responsible for the processing of personal data.

III.-

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Information to be provided when personal data is obtained from the data subject

Article 13 of the GDPR establishes the information that must be provided when personal data is obtained from the data subject, pursuant to which:

"1. When personal data relating to a data subject is obtained from the data subject, the data controller shall provide the data subject with all the information indicated below at the time the data is obtained:

- a) the identity and contact details of the controller and, where applicable, of its representative;
- b) the contact details of the data protection officer, where applicable;
- c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;
- d) where the processing is based on Article 6(1)(f), the legitimate interests pursued by the controller or a third party;
- e) the recipients or categories of recipients of the personal data, where applicable;
- f) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49(1), second paragraph, a reference to the appropriate or suitable safeguards and the means to obtain a copy of them or the place where they have been made available.

2. In addition to the information mentioned in paragraph 1, the data controller shall provide the data subject, at the time the personal data is obtained, with the following information necessary to ensure fair and transparent data processing:

- a) the period for which the personal data will be stored or, when that is not possible, the criteria used to determine that period;
- b) the existence of the right to request from the data controller access to personal data relating to the data subject, and their rectification or erasure, or the restriction of processing, or to object to the processing, as well as the right to data portability;
- c) where the processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on consent before its withdrawal;
- d) the right to lodge a complaint with a supervisory authority;
- e) whether the provision of personal data is a legal or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data and is informed of the possible consequences of failing to provide such data;
- f) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4), and, at least in those cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

3. When the data controller intends to further process personal data for a purpose other than that for which it was collected, it shall provide the data subject, prior to that further processing, with information on that other purpose and any pertinent additional information in accordance with paragraph 2. The provisions of paragraphs 1, 2, and 3 shall not be..."

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applicable when and to the extent that the interested party already has the information."

IV.-

Typification and qualification of the infringement

In accordance with the available evidence, it is considered that B.B.B., with NIF: ***NIF.1, is responsible for the website ***URL.1, where it has been verified that personal data of users can be obtained but lacks a "Legal Notice" or "Privacy Policy" informing about the legal aspects regarding the processing of personal data.

These facts constitute an infringement attributable to B.B.B., according to the provisions of Article 13 of the GDPR, transcribed in the previous foundation, which implies the commission of an infringement typified in Article 83.5.b) of the same Regulation, which under the heading "General conditions for the imposition of administrative fines" provides the following:

"5. Infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount: (...) b) the rights of the interested parties pursuant to Articles 12 to 22."

For the purposes of the statute of limitations for infringements, the alleged infringement prescribes after three years, in accordance with Article 72 of the LOPDGDD, which qualifies the following conduct as "very serious":

1. According to what is established in Article 83.5 of Regulation (EU) 2016/679, the infringements that constitute a substantial violation of the articles mentioned therein are considered very serious and shall prescribe after three years, particularly the following: (...) h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and 12 of this organic law.

V.-

Warning

Without prejudice to the provisions of Article 83 of the GDPR, the aforementioned Regulation provides in paragraph 2.b) of Article 58 the following:

"Each supervisory authority shall have all of the following corrective powers indicated below: (...) b) issue a warning to any controller or processor when the processing operations have infringed the

provisions of this Regulation; (...)”

Likewise, Article 64 of the LOPDGDD, which regulates the "Form of initiation of the procedure and duration," states in its third paragraph that:

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"3. When appropriate, taking into account the nature of the facts and duly considering the criteria established in Article 83.2 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, the Spanish Data Protection Agency, after hearing the controller or processor, may issue a warning, as well as order the controller or processor to adopt corrective measures aimed at ending the possible non-compliance with data protection legislation in a specific manner and within the specified time frame. The procedure shall have a maximum duration of six months from the date of the initiation agreement. After that period, it shall expire, and consequently, the proceedings shall be archived. The provisions of the second and third paragraphs of paragraph 2 of this article shall apply in this case."

In the present case, given the circumstances present in this procedure, it is deemed appropriate to issue a warning to B.B.B. for the infringement of Article 13 of the GDPR.

VI.-

Imposition of measures for the infringement of Article 13 of the GDPR

In this case, B.B.B., as the controller of the website ***URL.1, is required to take the necessary measures within two months to include in it, through a "Privacy Policy," all the information referred to in Article 13 of the GDPR.

It is warned that failure to comply with the requirements of this agency may be considered an administrative infringement in accordance with the provisions of the GDPR, typified as an infringement in Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in light of the above, by the Director of the Spanish Data Protection Agency,

IT IS AGREED:

FIRST: TO WARN B.B.B., with NIF: ***NIF.1, owner of the website ***URL.1, for the infringement of Article 13 of the GDPR, typified in Article 83.5 of the GDPR, regarding the absence of a "Privacy Policy" or "Legal Notice" on the same.

SECOND: TO ORDER B.B.B. to take the necessary corrective measures within two months to align its actions with data protection regulations concerning Article 13 of the GDPR, as well as to inform this Agency within the same timeframe about the measures adopted.

THIRD: TO NOTIFY this agreement to B.B.B.,

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In accordance with the provisions established in Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure (Article 48.6 of the LOPDGDD), and in accordance with the provisions established in Articles 112 and 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution, or, directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from

the day following the notification of this act, as provided in Article 46.1 of the aforementioned legal text.

Mar España Martí

Director of the Spanish Agency

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